

**IN THE HIGH COURT OF THE UNITED  
REPUBLIC OF TANZANIA TEMEKE  
HIGH COURT SUB-REGISTRY (ONE STOP JUDICIAL CENTRE)  
AT TEMEKE  
CIVIL APPEAL NO 26822 OF 2025**

(Arising from the Ruling of the Juvenile Court of Dar es Salaam at One Stop Judicial  
Centre in Juvenile Civil Application No. 20916 of 2025)

**C.L.....APPELLANT**

**VERSUS**

**W.O.N.....RESPONDENT**

**JUDGEMENT**

Date of last order: 23/12/2023

Date of Ruling: 31/12/2025

**S.D. MWAIPOPO J**

This is the first appeal arising from the Ruling of the Juvenile Court of Dar es Salaam at One Stop Judicial Centre in Juvenile Civil Application No. 20916 of 2025 decided by Hon. Mtae, SRM on 6<sup>th</sup> October 2025.

In a nutshell, the appeal stems from a dispute over who is to be granted custody of a female child, aged five years who was referred to as PQ (pseudonym) in the trial court's Ruling. The real name of the child is withheld pursuant to provisions of section 4 of the Personal Data Protection Act no

11/2022 and the Chief Justice's Circular no. 2/2025 on Judicial Protection of Personal Data and Information.

According to the records contained in the e-case file, the Appellant and the Respondent herein met in 2019, as university students and entered into a romantic relationship. In January 2020, the Appellant became pregnant and gave birth on 28<sup>th</sup> September 2020 to a daughter, now aged five years old. Although the relationship ended, both parties continued to cooperate for the child's welfare.

After the separation, a dispute arose over the child's care. The Respondent alleged that the Appellant denied him access to the child, placed her in a hostel without his knowledge, and failed to properly discharge her parental duties. He therefore filed an application in the Juvenile Court of Dar es Salaam at Temeke seeking custody of the child.

The Appellant opposed the application, arguing that the law presumes custody of a child under seven to remain with the mother unless she is proven unfit, and that no evidence had been adduced to show her incapacity or any risk to the child. She maintained that she had allowed the Respondent access and cooperated in the child's upbringing, and that the allegations raised were unsubstantiated.

After evaluating the evidence, the trial court granted custody to the Respondent, holding that the child's welfare and best interests were paramount. The court found that the Appellant had shown inconsistent supervision, while the Respondent had provided a stable and supportive environment for the child. The Appellant, dissatisfied with this decision, filed the present appeal challenging the trial court's findings on several grounds as follows: -

1. The trial Court erred in law and in fact by failing to properly apply and give effect to the guiding principle under S. 26(c) and S. 39 of the law of the child Act R.E.2023 which require the best interest and welfare of the child to be the paramount consideration on custody matters of children under the age of 7 years whose custody should be placed on the mother with proof that the mother is fit and financially capable unless there is a compelling evidence to the contrary which was not established in this case.
2. The trial Magistrate erred in law and/or misdirected herself by disregarding undisputed findings of the Social Inquiry Report indicating that the Respondent resides with his wife in a single master bedroom an environment not fit for a female minor, who was compelled to sleep in the living room during access period. The Court failed to consider that such living conditions are not conducive to the child's comfort, privacy or psychological wellbeing.
3. The trial Magistrate erred in law and in fact by granting custody to the Respondent without establishing any credible evidence demonstrating that the Appellant is unfit, incapable or otherwise unsuitable to care for the child contrary to the settled legal presumption that custody of a child of tender years is best placed with the mother unless proven otherwise.
4. The trial Court erred in law and in fact by failing to consider material evidence showing that the Respondent has consistently enjoyed unrestricted access to the child during weekends, and that there was no evidence of obstruction, alienation or denial of access by the Appellant to justify altering status quo.
5. That the decision of the trial court was against the weight of the evidence adduced and failed to take into account the Appellant's fitness, financial stability and commitment to the welfare and upbringing of the minor,

thereby arriving at a conclusion that was manifestly unjust and contrary to the interest of a girl child of tender age.

6. That the trial court erred in law and fact by disregarding or failing to adequately consider the Appellant's evidence presented during welfare assessment and subsequent proceedings, while unduly relying on the Respondent's submissions and representations to the exclusion of the Appellant's.
7. That the court erred in law and fact for relying on the social welfare report that was biased, improperly compiled and prejudicial to the Appellant having included out dated, irrelevant and immaterial issues relating to historical domestic disputes between parties matters that bear no relevance to the present welfare, safety and best interest of a child such inclusion unfairly discredited the Appellant and rendered the report unreliable as an objective assessment.
8. That the Trial court erred in law and fact upon relying on a social welfare report which demonstrates clear bias and lack of impartiality. The social welfare officer report shows favouritism towards the Respondent and the said officer reproduces his allegations almost word to word while briefly summarizing the Appellant's version such act vitiates the fairness and credibility of the report.
9. That the Trial Court relied on a social welfare report that included uncorroborated evidence (photos, Voice notes and a third-party statement) from the Respondent which were not authenticated with no chain of custody, no consent and in violation of child protection and privacy laws.
10. That the trial court erred in law and fact in adopting and relying upon such a biased report, failed to exercise its independent judicial mind, and thereby arrived at a conclusion unsupported by balanced and objective assessment of evidence on record.

11. That the trial court erred in law and fact by granting the Respondent's application for custody without proof of the grounds set out in his pleadings and by basing its decision on extraneous considerations and unsubstantiated findings contrary to established legal principles and the evidence adduced.

At the hearing, the Appellant was represented by Ms. Regina Kiumba, a learned counsel, while the Respondent appeared in person, although he also had the benefit of legal services provided by Mr. Alon Apius Matungwa. The parties agreed to submit their arguments through written submissions.

The Appellant filed eleven (11) grounds of appeal which were presented separately. However, upon careful consideration of the record, the Court finds that several of the grounds raised related to issues of law and fact and can conveniently be determined together. The Court therefore reproduces and considers the Appellant's submissions by combining the related grounds as follows:

With respect to the 1<sup>st</sup> and 3<sup>rd</sup> grounds, she submitted that the learned Trial Magistrate erred by failing to apply the principle that the welfare of the child is paramount, as provided under sections 26(2) and 39 of the Law of the Child Act, R.E. 2023. The minor child, being a five-year-old female of tender years, is presumed to remain in the mother's custody unless compelling evidence demonstrates that the mother is unfit. The Appellant argued that the Respondent presented no such evidence, yet the court granted him custody, contrary to established legal principles.

Regarding the Respondent's living conditions under the 2<sup>nd</sup> ground, the Appellant contended that the trial court ignored findings in the social welfare report

showing that the Respondent lived with his wife in a single-bedroom house and that the child slept on a mattress in the sitting room during access periods. She argued that such conditions were unsuitable for a young female child and negatively affected her privacy, comfort, and psychological wellbeing.

On the 4<sup>th</sup>, 5<sup>th</sup>, 6<sup>th</sup> and 11<sup>th</sup> grounds, the Appellant submitted that the trial court's decision was against the weight of evidence. She argued that the Respondent had uninterrupted access to the child, and allegations of her placing the child in a hostel or leaving her with strangers were unproven. The Respondent failed to discharge the burden of proof, while the Appellant's evidence of fitness, financial stability, and active involvement in the child's upbringing was inadequately considered.

Finally, regarding the 7<sup>th</sup>, 8<sup>th</sup>, 9<sup>th</sup> and 10<sup>th</sup> grounds, the Appellant challenged the credibility and impartiality of the social welfare report. She argued that it was biased towards the Respondent, reproduced his allegations almost verbatim, included irrelevant historical disputes, and relied on unauthenticated electronic evidence that she was not allowed to challenge. The trial court improperly adopted the report without independent assessment.

In conclusion, the Appellant prayed that the appeal be allowed, the trial court's decision set aside, and custody of the minor child granted to her, as this would best serve the welfare and best interests of the child.

Submitting in rebuttal, the Respondent stated as follows;

With respect to the 1<sup>st</sup> and 3<sup>rd</sup> grounds, The Respondent argued that the trial court correctly prioritized the child's welfare. Although the law presumes that children under seven should stay with their mother, this can be rebutted if the mother is unfit. The Respondent relied on the social inquiry report, highlighting

the Appellant's denial of paternity and telling the child that her father had died, actions deemed emotionally harmful and manipulative. The Respondent maintained that these behaviors justified granting custody to him, as it better served the child's welfare

Responding to the 2<sup>nd</sup> ground, The Respondent argued that the trial court properly assessed living conditions. He maintained that his home was adequate, providing a designated sleeping area and toys, with no harm to the child. The Respondent also noted that the Appellant lived in a small shared rented room. Additionally, he had taken steps to secure a larger residence, showing commitment to improving the child's living environment.

Responding to the 4<sup>th</sup>, 5<sup>th</sup>, and 6<sup>th</sup> ground, the Respondent submitted that, the trial court correctly evaluated the evidence and found his testimony more credible. He demonstrated a strong parental bond through consistent access to the child, stable residence, financial capacity, and commitment to maintaining the child's relationship with both parents. The Appellant failed to disprove his claims, and the Respondent met the burden of proof on a balance of probabilities. The trial court's decision to grant custody to him was therefore justified and in the best interest of the child.

Responding to the 7<sup>th</sup>, 8<sup>th</sup>, 9<sup>th</sup> and 10<sup>th</sup> grounds of appeal, the Respondent submitted that the trial court properly relied on the social inquiry report, which was lawfully obtained and assessed impartially. He argued that the Appellant had full opportunity to challenge the report at trial but failed to do so. Allegations of bias, outdated information, or procedural irregularities were unsubstantiated, and the court exercised independent judicial discretion in evaluating all evidence, including the report, when making the custody decision.



In conclusion, the Respondent submitted that, the appeal has no merit, asserting that the trial court correctly applied the law, properly assessed the evidence, and decided in the best interest and welfare of the child. He prayed for the appeal to be dismissed and the trial court's decision upheld.

In rejoinder, The Appellant denied all of the Respondent's claims, arguing that the trial court misapplied the law, relied on a biased social inquiry report, and ignored her evidence of consistent care, financial stability, and active involvement in the child's welfare. She maintained that no proof of unfitness was presented and the Respondent failed to meet the burden of proof. The Appellant urged that the appeal be allowed, the trial court's decision reversed, and custody granted to her.

Having digested the rival submissions of the parties, the broad question to be resolved is whether this appeal has merit.

In determining this appeal, I am alive to the fact that, this being the first appellate court, it has power and duty to reconsider and reevaluate the lower court records and arrive at its own findings if necessary. See the case of **Zalina Maulid Shabani vs Zauda Salehe Msami Pc. Criminal Appeal No. 123 of 2024 HCT Dodoma.**

Similarly, I am also aware that, in determining the grounds of appeal, the appellate court can deal with all the grounds of appeal seriatim, or begin with any other ground or deal with one ground of appeal that can dispose the appeal. In the case of **Zuberi Bakari Mwichikitu vs Selemani Bakari Mwichikiti, Pc Civil Appeal No.91353 O 2023** the Court observed that;



**"An appellate court, however, is not bound to determine all grounds of appeal. It can determine a ground that disposes of the matter alone. It can also determine the grounds jointly or generally or in seriatim.**

This stance was well explained by the Court of Appeal in **Malmo Montagekonsult AB Tanzania Branch vs. Margret Gama**, (supra) whereby the court stated:

**"In the first place, an appellate court is not expected to answer the issues as framed at the trial. That is the role of the trial court. It is, however, expected to address the grounds of appeal before it. Even then, it does not have to deal seriatim with the grounds of appeal as listed in the memorandum of appeal. It may, if convenient, address the grounds generally or address the decisive ground of appeal only or discuss each ground separately".**

I will begin to determine the 1<sup>st</sup> and 3<sup>rd</sup> grounds of appeal which raise a fundamental issue regarding the custody of a child of tender years and the correct application of the Law of the Child Act, R.E. 2023. The Appellant argues that the Trial Magistrate erred in both law and fact by awarding custody of a five-year-old female child to the Respondent without credible evidence establishing that the mother was unfit, incapable, or unsuitable.

First, the law is very clear that a child under the age of 7 years shall be placed under the care of the mother, unless there are very special circumstances that hinder this.

Section 37 of the Law of the Child Act, must be read with section 26(2) of the same Act which reads:

***"There shall be a rebuttable presumption that it is in the best interest of a child below the age of seven years to be with his mother but in deciding whether that presumption applies to the facts of any particular case, the court shall have regard to the undesirability of disturbing the life of the child by changes of custody": (Emphasis added)***

Section 39(1) and (2) of the Law of the Child Act provides as follows:

***(1) The court shall consider the best interest of the child and the importance of a child being with his mother when making an order for custody or access.***

*(2) Subject to subsection (1), the court shall also consider*

*a) The rights of the child under section 26;*

***(b) The age and sex of the child,***

It is common ground that the minor child, is a female aged five years and therefore a child of tender years within the meaning of sections 26 and 39 of the Law of the Child Act. The law is explicit clear that, in all matters concerning custody, the best interest and welfare of the child shall be the paramount consideration. This principle of the best interest of the child is provided under Section 4 (2) and 39 (1) of the Law of the Child Act, Cap. 13. This principle has been domesticated and imported into the Tanzania's Law of the Child Act from the United Nations Convention on the Rights of the Child, which was signed and ratified by Tanzania in 1990 and 1991 respectively as well as the African Charter on the Rights and Welfare of the Child, signed and ratified by Tanzania. Similarly,

the principle has been interpreted by the UN Committee on the Rights of the Child vide its General Comment No. 14 (2013), on right of the child to have his or her best interests taken as a primary consideration<sup>9</sup>CRC/C/GC/14)

Now coming back to the Domestic law, Sections 4(2) and 39(1) of the Law of the Child Act states as follows;

***Section 4 (2); the best interest of the child shall be a primary consideration in all actions concerning children whether undertaken by public or private social welfare institutions, courts, or administrative bodies.***

***Section 39 (1); the court shall consider the best interest of the child and the importance of a child being with his mother when making an order for custody***

While the welfare principle is emphasized in determining issues of custody, the same is not defined under the Law of the Child Act. Neither the United Convention on the Rights of the Child nor the African Charter on the Rights and Welfare of the Child, both signed and ratified by Tanzania, have defined the phrase the "best interest of the child". However, UN Committee on the Rights of the Child's, General Comment no 14/2023, issued under Article 3(1) of the UN Convention on the Rights of the Child (CRC) states that and I quote:

In all actions concerning children, whether undertaken by public or private social welfare institutions, courts of law, administrative authorities or legislative bodies, the best interest of the child shall be a primary consideration.

Key principles which are derived from the general comment are that, "the best interest of the child" is a substantive right of the child, fundamental

interpretative legal principle and a rule of procedure requiring a reasoned assessment based on the following factors; age and sex of the child, emotional attachment and primary caregiver, stability and continuity of upbringing, child's vulnerability, preservation of the family environment, child's physical, emotional and psychological development and views of the child where age-appropriate. The UN Committee has stressed that young children need stable, continuous care, usually provided by the primary caregiver, most often the mother. For a child of tender years, he or she is always dependent, emotional security and daily care are critical hence separation from the primary caregiver should only occur for compelling reasons.

Further, it is also my understating that, the term means and includes what is best suited to a child to ensure his or her survival, development and upbringing physically, psychologically, emotionally and spiritually. The UN General comment no. 14 on Article 3 of the Convention on the Rights of the Child adopted in 2013 further states that;

**the best interest of the child is a dynamic concept that requires an assessment appropriate to the specific context.**

In the case of **Bharat Dayal Velji v Chandni Vinesh Bharat**, (Civil Appeal No. 45 of 2017) [2018] TZHC 45 the principle of the best interest of the child was given a broad meaning. The High Court held that;

***"The best interest caters far beyond financial ability since children need love, affection and care of which the mother is in a better position to offer to her children against the whole world".***

This principle has also been emphasized in the case of **Dunia Yusufu Dunia vs. Subira Doreen Mosah (Matrimonial Cause No. 03 of 2022) [2023] TZHC 21956**, where it was stated that;

***..... the court has to take into consideration the welfare or best interest of the child. In doing so, therefore, parents or any other person may be given custody”.***

See also the following cases; **Sarah Sharon Kuzilwa vs Abdalla Singano Civil Appeal no 50344/2024 HCT Temeke OSCJ, Habby Longo V Dotto Kifizi, Civil Appeal no. 67 of 2021, HC-Mwanza, and Sarah Anthony Philemon Stephano, Civil Appeal No. 3948 of 2024, (Unreported)**

Therefore, this presumption of placing the child of tender years in the custody of the mother is deeply rooted in both statute and judicial precedent and may only be displaced upon clear, cogent, and compelling evidence demonstrating that the mother is unfit or that the child’s welfare would be jeopardized by remaining in her care. The burden of rebutting this presumption lies squarely upon the party seeking to displace it.

A careful re-evaluation of the record reveals that, although the learned Trial Magistrate correctly identified the principle that the best interest of the child is paramount, the court fell into error in its application of that principle to the facts before it. The trial court granted custody to the Respondent on the basis of alleged inconsistent supervision by the Appellant and the perceived stability of the Respondent’s environment. However, the court did not demonstrate how these findings amounted to proof of unfitness on the part of the Appellant as required by law.

On the contrary, the evidence on record indicates that the Respondent had been enjoying regular and unrestricted access to the child, particularly during weekends. This fact substantially weakens the assertion that the Appellant deliberately obstructed the Respondent's relationship with the child or acted in a manner inimical to the child's welfare.

The Respondent further relied on allegations that, the Appellant initially denied his paternity and allegedly informed the child that her father had died. While such conduct, if established, may be undesirable and deserving of judicial concern, the trial court did not sufficiently interrogate these claims or assess their actual impact on the child's emotional or psychological wellbeing. More importantly, the court did not address whether such conduct, even if assumed to be true, rose to the level of parental unfitness contemplated under section 39 of the Act. It is my settled position that, custody decisions must be founded on demonstrable harm or risk to the child, not on unresolved parental conflict or historical disputes between the parties. See the case of Sarah Sharon Kuzilwa vs Abdalla Singano (*supra*).

I must make it clear to both parties that, children are not mere chattels or properties of parents and that custody disputes must focus on welfare, not parental preferences or control. In the case of Alice Mbekenga versus Respicious P Mtumbuka (2021) TZHC 32 92 HCT DSM the High Court quoted the supreme Court of India in Rosy Jacob V Jacob A. Chakramakkal (9173 1 SCC 840 and stated as follows;

**The children are not mere chattels, nor are they mere play things for their parents. Absolute right of parents over the destinies and lives of their children has, in the modern changed social conditions, yielded to the consideration of**

**their welfare as human beings so that they may grow up in a normal balanced manner to be useful members of the society**

This principle is vital in emphasizing that, the best interests of the child, not parental rivalry, should guide custody decisions. That custody battles should not be about parental revenge or a means for parents to settle scores but about child welfare in line with Article 3 of the UN Convention of the Rights of the Child and section 4 of the Law of the Child Act. This toxic behavior if any, of infiltrating wrong ideas and weird information to the child of tender years, about her father should be stopped immediately. The focus should be on the welfare of the child.

Similarly, in granting custody to the Respondent, the trial court appears to have placed undue emphasis on the Respondent's perceived stability and willingness to care for the child, without first establishing that custody with the Appellant was detrimental to the child's welfare. This approach amounted to a misdirection in law. The correct inquiry was not whether the Respondent was capable of caring for the child, but whether the Respondent had discharged the burden of proving that the Appellant was unfit or that the child's best interests would be compromised by remaining in her custody. The record does not disclose any such finding supported by cogent evidence.

The presumption under section 39 is not a mere formality; it is a substantive protection grounded in the recognized needs of children of tender years, particularly female children, and cannot be displaced in the absence of compelling and well-founded reasons.



In the circumstances, this court is satisfied that the learned Trial Magistrate erred in both law and fact by granting custody of a child of tender years to the Respondent without establishing credible evidence of unfitness, incapacity, or unsuitability on the part of the Appellant. The best interest principle was misapplied in a manner that effectively negated the statutory presumption without lawful justification.

Accordingly, I am confident to state at this juncture that, the best interests of a five-year-old child must be paramount in awarding custody, in this case to the mother.

Consequently, the first and third grounds of appeal are meritorious and are hereby upheld. The findings and conclusions of the trial court relating to these grounds are set aside for being contrary to the Law of the Child Act, R.E. 2023, and the settled principles governing custody of children of tender years.

In determining the 2<sup>nd</sup> ground of appeal, which challenges the trial court's consideration of the Respondent's living conditions. The Social Inquiry Report indicated that the Respondent resides with his wife in a single-room house and that the child slept in the living area during access periods. It is also on record that the Appellant lives in a similar single-room accommodation.

This court finds that, in the circumstances both parties live in a one room dwelling. However, evidence indicates that when the 5-year-old child visits her father she sleeps in the living room while the Respondent and his wife sleep comfortably in the bedroom. The only times she sleeps with her step mother is when the Respondent goes back home late.

While I have not encountered any evidence of actual harm to the child, I have not equally encountered any evidence indicating that the child sleeps in the living

room while she is at her mother's place. In fact, the evidence available shows that the child sleeps with her mother in the same bedroom, when she is in her custody.

In this regard, I am of the settled position that, the best interest principle of the child is key in assessing this ground as well. I am very aware that the child's environment must support her physical, mental, psychological wellbeing and emotional development, which cannot be attained if she alone continues to spend her nights in the sitting/living room while her father spends peaceful nights in the bedroom. In the case of **Mnyonge Idrisa Vs Kirumba Hussein** PC Matrimonial. Appeal No. 04/2020 HTC at Mwanza page 9&11, the court held that;

**"The best interest of the child is not only food, shelter, and schooling, but the court should consider other factors such as; the age and sex of the child, care, and emotional development' this girl was ten year to the date of decision at the trial court".**

Considering the gender of the child and the issue of emotional development and comfort, as it is embodied in the best interest principle and given that the child is a five-year-old female of tender years, custody should properly remain with the Appellant, in line with section 39 of the Law of the Child Act, R.E. 2023, which presumes maternal custody unless the mother is shown to be unfit. The Respondent's living conditions, therefore, do not constitute a sufficient basis to grant him custody.

Accordingly, the 2<sup>nd</sup> ground of appeal is allowed.

In determining the 4<sup>th</sup>, 5<sup>th</sup>, 6<sup>th</sup>, and 11<sup>th</sup> grounds of appeal, I will combine them together as they challenge the Trial Magistrate's evaluation of the evidence, the burden of proof, and the justification for changing the existing custody arrangement. The Appellant argues that the decision was against the weight of the evidence and based on unproven allegations, noting that the Respondent had regular access to the child and failed to prove claims of denial of access, neglect, or placement of the child in a hostel or with strangers

I am also alive with the settled position of the law in the rules of evidence that the one who alleges a particular fact must prove it and that in civil cases like this one, the standard of proof is on the balance of probabilities (See sections 117 of the Evidence Act, Cap 6 R.E 2023 and the case of Mrs. ***Zubeda Ahmad Lakha v Hajibhai Kara Ibrahim & 2 Others***, Civil Appeal No. 238 of 2018.

In custody matters, while the court is vested with wide discretion, that discretion must be exercised judiciously and on the basis of evidence properly placed before the court. Where a party seeks to alter an existing custodial arrangement, particularly where a child of tender years has been under the care of one parent, the onus lies on that party to demonstrate that the change is justified and that it would better serve the welfare of the child.

Upon a careful reappraisal of the record, this court notes that the Respondent's application before the trial court was premised on allegations of denial of access, neglect, and inconsistent supervision by the Appellant. However, the evidence on record, including the Appellant's testimony and portions of the Social Inquiry Report, shows that the Respondent had been enjoying regular weekend access to the child.

No credible evidence was adduced to establish that the Appellant deliberately obstructed or frustrated the Respondent's access or sought to alienate the child from him in a manner warranting a transfer of custody. In the absence of such proof, the justification for altering the existing custodial arrangement was not sufficiently demonstrated.

Additionally, the allegations that the child had been placed in a hostel or left in the care of strangers were not substantiated by documentary or independent evidence. The trial court did not identify any specific proof confirming these claims, nor did it explain how such alleged conduct, even if accepted, translated into neglect or risk to the child's welfare. The failure to critically evaluate these allegations and to require the Respondent to discharge the evidential burden amounted to a misdirection.

The Appellant further complained that, the learned Trial Magistrate failed to adequately consider her evidence regarding her fitness, financial stability, and commitment to the upbringing of the minor. The record indicates that the Appellant tendered evidence showing that she was gainfully employed and capable of meeting the child's basic needs.

While this evidence was acknowledged in the Social Inquiry Report, the trial court did not meaningfully engage with it in its reasoning, nor did it weigh it against the Respondent's assertions in a balanced manner. Instead, the court appears to have placed disproportionate reliance on the Respondent's narrative, without sufficiently interrogating its evidential foundation. It is the court's duty to assess the evidence of both parties objectively, in a detailed manner and impartially rather than mechanically. See the following cases. Elisha Edward v Republic (2021) TZCA 397, Dotto Lukalangwa V Republic (2024) TZHC 7768.

Further, the regional continental court, the African Court on Human and Peoples Rights, in the case of Bonge and Others Vs URT 2023 AfCHPR 46 and Godwin Vs UTR 2023 AfHCPR 22 affirmed this principle of fair assessment of evidence. Despite the fact that Tanzania withdrew its Declaration which was made under Article 34(6) of the Protocol to the African Charter on Human and Peoples Rights on the establishment of the African Court on Human and Peoples Rights, to deny the competence of the African Court to receive its cases, the principle enshrined in these two cases is still very alive and applicable in the case at hand. In the said cases, the African Court on Human and Peoples rights stated that:

**Domestic courts must assess evidence in a manner consistent with full trial standards and intervene where manifest irregularities undermine impartial evaluation.**

This court is mindful that an appellate court is not supposed to interfere with the with findings of fact by a trial court unless there is a procedural irregularity, misapprehension of evidence or miscarriage of justice.

Further, where it is shown that the trial court failed to properly, impartially and fairly weigh the evidence, ignored material facts, or placed undue emphasis on unproven allegations, appellate intervention is always justified. In the present case, the learned Trial Magistrate did not adequately demonstrate how the Respondent had discharged the burden of proof required to justify a change of custody, nor how the Appellant's evidence was insufficient to sustain her continued custody of the child.

Furthermore, the cumulative effect of these omissions resulted in a decision that was against the weight of the evidence on record. The trial court altered the status quo without clear justification and without a demonstrable evidentiary

basis showing that such alteration was necessary for the welfare of the child. This approach was inconsistent with established legal principles governing custody determinations and the exercise of judicial discretion.

In the circumstances, this court finds that the learned Trial Magistrate erred in law and in fact by granting the Respondent's application for custody without proof of the grounds pleaded, by failing to properly evaluate and weigh the Appellant's evidence, and by basing the decision on considerations not sufficiently supported by the evidence on record.

In determining the 7<sup>th</sup>, 8<sup>th</sup>, 9<sup>th</sup> and 10<sup>th</sup> grounds of appeal are considered together as they challenge the credibility and impartiality of the Social Inquiry Report and the trial court's failure to independently and critically evaluate it. The Appellant argues that the report was biased, relied on irrelevant and unauthenticated material, and was adopted wholesale, thereby undermining the fairness of the proceedings.

It is not in dispute that a Social Inquiry Report is a lawful and important tool in custody proceedings. Rule 72 of the Law of the Child (Juvenile Court Procedure) Rules empowers the court to order such an inquiry to assist in determining matters affecting the welfare of a child. However, the law is equally clear that a social inquiry report is not binding on the court. It is an aid to judicial decision-making and must be evaluated critically alongside all other evidence. The court remains under a duty to exercise an independent judicial mind and must not abdicate that responsibility to a social welfare officer. Courts are enjoined to determine cases fairly in line with Article 13(6)(a) of the Constitution of the United Republic of Tanzania, 1977 which provides for fair trial guarantees. This is important in order to exclude legitimate doubt about bias in evidence handling.





Upon a careful perusal of the record, this court observes that the Social Inquiry Report in question contained a detailed narration of the Respondent's allegations, often reproduced at length, while the Appellant's version of events was summarized briefly and without equal depth. While disparity in length alone does not necessarily establish bias, the overall structure and emphasis of the report created an appearance of imbalance which called for cautious treatment by the trial court. The inclusion of historical domestic disputes and past interpersonal conflicts between the parties, without a clear nexus to the present welfare or safety of the child, further diminished the probative value of the report. Custody determinations must be anchored in current and relevant considerations, not in past grievances that do not directly impact the child's present or future wellbeing.

The Appellant also took issue with the inclusion of electronic materials such as photographs, videos, voice notes, and third-party statements allegedly supplied by the Respondent. The record shows that these materials were incorporated into the report without authentication, without demonstration of their source, and without affording the Appellant a meaningful opportunity to challenge their admissibility or probative value. While social inquiry reports are not bound by the strict rules of evidence applicable in ordinary civil trials, the use of uncorroborated and potentially prejudicial materials still requires careful judicial scrutiny, particularly where such material is relied upon to make far-reaching orders affecting custodial rights.

Of equal concern is the manner in which the learned Trial Magistrate relied upon the Social Inquiry Report. The Judgment of the trial court reveals that the Report was adopted almost in its entirety, with little independent analysis of its contents or of the Appellant's objections thereto. There is no indication that the trial court weighed the report against the totality of the evidence or addressed



the apparent inconsistencies and imbalances highlighted by the Appellant. This approach gave rise to the legitimate inference that the court unduly deferred to the report and failed to critically assess its reliability and relevance.

The Respondent argued that the Appellant failed to challenge the report at trial by requesting the social welfare officer to testify or be cross-examined, as permitted under Rule 72(5) of the Rules. While it is true that the Appellant did not pursue that course, this omission does not absolve the trial court of its duty to independently evaluate the report and ensure that its conclusions are fair, balanced, and supported by the evidence. The ultimate responsibility for the decision rests with the court, not with the author of the report. That is why, at an appellate stage also, the court is endowed with a duty of evaluating the evidence and interfering with the findings of the trial court if they have occasioned a miscarriage of justice.

In the circumstances, this court is satisfied that the learned Trial Magistrate erred in law and in fact by placing undue reliance on a social inquiry report that exhibited material imbalances, incorporated irrelevant and untested matters, and was not subjected to adequate judicial scrutiny. The failure to exercise an independent judicial mind, as required by Rule 72 and established legal principles, undermined the fairness and integrity of the custody determination.

In the upshot and based on what has been stated herein above, I order as follows; -

1. The appeal is allowed.
2. The Appellant is hereby granted custody of the child "PQ"



3. The Respondent as the father of the child has the right to visit and access his child as long as it does not interfere with school programmes/schedules and upon notification being given to the Appellant, ensuring the child maintains a meaningful relationship with both parents.

4. The child's school long holidays shall be shared between parents' subject to the child's attainment of seven years and improvement of the Respondent's living environment.

5. Both parents shall cooperate in decisions affecting the child's education, health, religion and welfare, with the Applicant having final authority on day to day matters.

6. The custody order shall remain in force until further order of the court or until circumstances change in a manner materially affecting the child's welfare.

7. The circumstances of this case are such that no order for costs should be given.

I so order

The right of appeal is fully explained

**DATED at TEMEKE this 31<sup>st</sup> DAY of DECEMBER 2025**



*S. Mwaipopo*  
**S. MWAIPOPO**

**JUDGE**

**31/12/2025**